

Code Book: ISM Dataset
OECD Countries 2007 – 2023
Last Updated: 12 Feb 2023

Variable Definitions

For variables that have binary values, “1” is equivalent to “yes”, while “0” is equivalent to “no”.

ISO3N: Three-digit country codes published by the International Organization of Standardization.

OECD, EU/EEA, or FIVE EYES: Illustrates which group of countries the country is a member of, including the Organization for Economic Co-operation and Development, European Union or European Economic Area, or the Five Eyes intelligence alliance.

YEAR ESTABLISHED: Year the first investment screening mechanism was approved or created.

YEAR: Year the regulation comes into force. For example, the US FIRRMA regulations were signed in 2018 but didn't come into effect until 2020. FIRRMA changes enter the dataset in 2020.

NUMBER OF MECHANISM: Counts the number of mechanisms related to screening. For example, Australia has had a cross-screening mechanism since 1975. In 2017 and 2018, it passed two laws that created a separate regulatory mechanism for evaluating the national security implications of investments in telecommunications and critical infrastructure. Since the screening process and bodies for these mechanisms are separate from the body that reviews foreign investment cross-sectorally, Australia currently has three mechanisms related to nation security review.

LAW CHANGE: The number of law changes in that year.

COVERAGE: On what basis are investments screened?

- Sectoral – The legislation specifies sectors the ISM covers.
- Cross-sectoral – The legislation avoids specifying sectors and/or gives government authority to review investments in any sector.
- Mixed – The legislation gives government authority to review investments in any sector, and there are stricter review requirements for a list of sectors.
- Asset-based – The legislation gives government authority to review acquisitions of specific assets, e.g. specific companies, specific infrastructure assets, or specific patents.
- Draft form – There is currently a legislative effort to create an ISM, but it has not yet been voted into law.

代码手册：ISM数据集
经合组织成员国，2007–2023年
最后更新日期：2023年2月12日

变量定义

对于具有二元值的变量，“1”相当于“是”，而“0”相当于“否”。

ISO3N：由国际标准化组织发布的三位数国家代码。

OECD、EU/EEA 或 FIVE EYES：说明该国所属的国家集团，包括经济合作与发展组织、欧盟或欧洲经济区，或五眼情报联盟。

成立年份：首次投资筛选机制获得批准或设立的年份。

生效年份：法规正式实施的年份。例如，美国 FIRRMA 法规于2018年签署，但直至2020年才正式生效；FIRRMA 相关变更数据于2020年录入数据集。

机制数量：统计与国家安全审查相关的机制数量。例如，澳大利亚自1975年起便建立了跨领域审查机制。2017年和2018年，该国通过了两项法律，专门设立了独立的监管机制，用于评估电信及关键基础设施投资对国家安全的影响。由于这些审查机制的流程与机构独立于负责跨部门审查外国投资的中央机构，澳大利亚目前共拥有三项与国家安全审查相关的机制。

法律变更：该年度法律变更的数量。

覆盖范围：投资筛选是基于什么标准进行的？

- 行业分类——该立法明确了ISM所涵盖的行业范围。
- 跨部门性——该立法避免明确指定具体行业，和/或赋予政府对任何行业的投资进行审查的权力。
- 综合评估——该立法赋予政府审查任何领域投资的权力，并对特定行业清单制定了更为严格的审查要求。
- 基于资产的收购——该立法赋予政府审查收购行为的权力。
特定资产，例如特定公司、特定基础设施资产或特定专利。
- 草案——目前正有立法工作旨在制定《ISM》，但该草案尚未通过投票成为法律。

NOTIFICATION REQUIREMENTS: Are investors required to notify the review board of their investment?

- Mandatory for all sectors,
- Mandatory for certain sectors (e.g. critical infrastructure)
- Not mandatory

PREAPPROVAL: Do investors need preclearance before effectuating a transaction?

- **Mandatory for all sectors**
- **Mandatory for certain sectors (e.g. critical infrastructure)**
- **Not mandatory**

FORMAL CALL IN POWER: Does the government have the formal authority to require a review of an investment that is otherwise not subject to mandatory review?

- 0 - No
- 1 - Yes

GREENFIELD COVERED: Does the screening mechanism apply to greenfield investment?

- 0 - No
- 1 - Yes

REAL ESTATE COVERED: Does the screening mechanism apply to land/real estate?

- 0 - No
- 1 - Yes

TIME FRAME: How long is the notification and review process for the screening mechanism?

Each country has a different time frame for how long the notification and review process for the acquisitions, transactions, and mergers lasts for. Some countries have multiple stages of the review process, such as the notification process and then the finalized review. In order to simplify this, the TOTAL duration in days is recorded.

THRESHOLD FOR TRANSACTION: What is the threshold necessary for review to be triggered for the transaction? Some countries have different thresholds for different classes of sectors (e.g. strategic sectors vs. non-strategic sectors). In this case, the threshold for strategic sectors is the one coded. If transactions of any size can be reviewed, the threshold is 0.

NB – In some cases, there may be only one sector that is reviewed at a stricter standard. In these cases, we do not code this smallest threshold, as we view it as not indicative of the

通知要求：投资者是否必须向审查委员会报告其投资情况？

- 所有行业均须遵守。
- 某些行业（例如关键基础设施）必须遵守此规定。
- 非强制性的

预批准：投资者在完成交易前是否需要获得预先批准？

- 所有行业均须遵守。
- 某些行业（例如关键基础设施）必须遵守此规定。
- 非强制性的

正式的“调入”权力：政府是否拥有正式权力，要求对原本无需接受强制审查的投资进行审查？

- 0 - 否
- 1 - 是的

新建项目是否适用：该筛查机制是否适用于新建投资项目？

- 0 - 否
- 1 - 是的

房地产涵盖范围：该筛选机制是否适用于土地/房地产？

- 0 - 否
- 1 - 是的

时间框架：该筛查机制的通知与审查流程需要多长时间？

各国对收购、交易及合并的申报与审查流程所耗时间的规定各不相同。部分国家的审查流程包含多个阶段，例如先进行申报程序，随后再进行最终审查。为简化流程，通常会记录整个流程的总耗时（以天为单位）。

交易审查阈值：触发交易审查所需的阈值是多少？部分国家对不同类别的行业（例如战略性行业与非战略性行业）设有不同的阈值。在此情况下，战略性行业的审查阈值即为所规定的阈值。若任何规模的交易均可接受审查，则阈值为0。

注：在某些情况下，可能仅有一个领域受到更严格的标准审查。在这种情况下，我们不会对这一最低阈值进行编码，因为我们认为它不能反映整体情况。

broader screening environment. Stay tuned for a sector-by-sector threshold coding structure in next year's update.

REVIEW OF INCREASED OWNERSHIP: Can the government re-review investment in a domestic business by the same acquirer if the percentage of ownership crosses a higher threshold?

- 0 - No
- 1 - Yes

FILING FEES: Some countries require filing fees when notifying a transaction.

- 0 - No
- 1 - Yes

MITIGATION: Does the investment review mechanism specify a method by which the body can enter mitigation agreements with the transaction parties as a condition of approval?

- 0 - No
- 1 - Yes

FINES: Does the investment review mechanism specify the authority to levy fines against transaction parties that fail to conform to the requirements of the regulation?

- 0 - No
- 1 - Yes

NATIONAL SECURITY/PUBLIC ORDER TEST: Does the review mechanism allow the government to block a transaction on national security and/or public order grounds?

- 0 - No
- 1 - Yes

NET BENEFITS TEST: Does the review mechanism allow the government to block a transaction if it determines the investment does not provide a sufficient economic benefit to the national economy?

- 0 - No
- 1 - Yes

COMPETITION TEST: Does the investment review mechanism have a component of analysis focused on competition/monopoly concerns?

更全面的筛查环境。敬请关注明年更新中按行业划分的阈值编码结构。

所有权增加的审查：若所有权比例超过更高门槛，政府能否对同一收购方对国内企业的投资进行重新审查？

- 0 - 否
- 1 - 是的

报告费用：部分国家在通知交易时要求缴纳报告费用。

- 0 - 否
- 1 - 是的

缓解措施：投资审查机制是否规定了相关机构可作为批准条件，与交易各方签订缓解协议的具体方法？

- 0 - 否
- 1 - 是的

罚款：投资审查机制是否明确规定了对未遵守本条例要求的交易各方处以罚款的权力？

- 0 - 否
- 1 - 是的

国家安全/公共秩序测试：该审查机制是否允许政府基于国家安全和/或公共秩序理由阻止交易？

- 0 - 否
- 1 - 是的

净效益测试：若审查机制认定某项投资未能为国民经济带来足够的经济效益，政府是否可据此阻止该交易？

- 0 - 否
- 1 - 是的

竞争评估：投资审查机制是否包含针对竞争/垄断问题的分析环节？

- 0 - No
- 1 - Yes

INTERAGENCY REVIEW: Does the mechanism mandate some form of inter-agency responsibility for reviewing transactions?

- 0 - No
- 1 - Yes

LEAD AUTHORITY: Which government body is responsible for undertaking investment review?

TIERED LEVELS OF AUTHORITY: Does the review have multiple authorities, where a clearing authority can review transactions of lower risk and thresholds while a higher level, different group can decide higher risk transactions?

- 0 - No
- 1 - Yes

LOCAL REPRESENTATION: Is a local political authority (e.g. regional governor, city leader) included in investment review?

- 0 - No
- 1 - Yes

ENHANCED REVIEW OF FOREIGN GOVERNMENT CONTROL: Are investments determined to be controlled by a foreign government subject to increased scrutiny? Note that most countries list foreign government control as a potential national security risk. This measure captures situations in which foreign government controlled entities are subject to extra screening requirements, such as when buyers that are foreign government controlled are subject to screening at lower ownership thresholds than are buyers without foreign government controlled ownership.

- 0 - No
- 1 - Yes

COLOCATION: Does the real estate screen have a test related to the proximity of a defense installation, critical infrastructure facilities, or borderlands?

- 0 - No
- 1 - Yes

EU VS. NON-EU DIFFERENCES: In the case of EU member states, are EU investors except from review?

- 0 - 否
- 1 - 是的

机构间审查：该机制是否要求各机构承担某种形式的交易审查责任？

- 0 - 否
- 1 - 是的

主管机构：哪个政府机构负责进行投资审查？

分级权限结构：该审查是否设有多个审批层级？例如，清算机构可审查风险较低、金额较低的交易，而更高层级的不同部门则负责审批风险较高的交易。

- 0 - 否
- 1 - 是的

当地代表：投资审查是否涵盖了当地政治机构（例如地区州长、城市领导人）？

- 0 - 否
- 1 - 是的

加强对外资政府控制的审查：被认定受外国政府控制的投资是否需要接受更严格的审查？需注意的是，大多数国家都将外国政府控制列为潜在的国家安全风险。这一措施适用于以下情形：受外国政府控制的实体需接受额外的审查要求——例如，与未受外国政府控制的买家相比，受外国政府控制的买家在达到较低所有权门槛时即需接受审查。

- 0 - 否
- 1 - 是的

共址：房地产筛选条件中是否包含与国防设施、关键基础设施或边境地区邻近程度相关的测试？

- 0 - 否
- 1 - 是的

欧盟与非欧盟国家的区别：对于欧盟成员国而言，欧盟投资者是否免于接受审查？

- 0 - No
- 0.5 – exempt from certain sectors
- 1 - Yes

TEMPORARY COVID-19 LEGISLATION: Is the screening mechanism temporary because of the emergency directives related to the COVID-19 crisis? This variable is coded 1 if the mechanism was established using COVID-19 emergency powers or if it was explicitly justified as a response to COVID, and at least initially implemented on a “temporary” basis.

- 0 - No
- 1 - Yes

SECTORS WITH ENHANCED SCREENING: A series of indicator variables for whether the ISM reviews acquisitions/investments in the listed sector. Note that cross-sectoral screens are not based on sectors and therefore not included in this section. If a cross-sectoral mechanism has enhanced/additional requirements for specific sectors, they are indicated here. To aid in cross-walks to widely-used industry codes, when relevant, we also include NACE codes in the variable names. Stata users will need to rename variables, and R users will probably wish to do so as well. Please see our coding note on industry cross-walks for more information (as well as information about how to cross-walk to NAICS codes, which are likely more useful for projects that are focused on technology sectors).

- Defense Production
- Energy Infrastructure (electricity/gas/coal production and distribution)
- Water Infrastructure
- Transportation Infrastructure
- Telecommunications Infrastructure
- Healthcare infrastructure
- Education and training
- Agriculture/food security
- Finance
- Media
- Co-location
- Research Institution
- Sensitive Personal Data
- Controlled Dual-Use
- Biotechnology
- Artificial Intelligence and Machine Learning
- Position, Navigation, and Timing Technology
- Microprocessor technology
- Advanced computing technology
- Data Analytics technology
- Quantum information and sensing technology
- Logistics technology

- 0 - 否
- 0.5 – 免于某些行业的限制
- 1 - 是的

临时性COVID-19立法：筛查机制是否因与COVID-19危机相关的紧急指令而具有临时性？若该机制是利用COVID-19紧急权力设立的，或明确被证明是为应对COVID-19疫情而设立，并且至少最初是以“临时”方式实施的，则该变量编码为1。

- 0 - 否
- 1 - 是的

加强筛选的行业：一系列用于判断ISM是否对上市行业内的收购/投资进行审查的指标变量。需注意，跨行业筛选机制并非基于具体行业划分，因此未纳入本节内容。若跨行业机制对特定行业设有强化或附加要求，相关说明已在此处列出。为便于与常用行业代码进行对应对照（如适用），我们还在变量名称中包含了NACE代码。Stata用户需对变量进行重命名，R用户同样需要执行此操作。更多相关信息（包括如何与NAICS代码进行对应对照——该代码对聚焦科技行业的项目更具实用价值）请参阅我们关于行业代码对照的说明文档。

- 国防生产
- 能源基础设施（电力/天然气/煤炭的生产与分配）
- 水基础设施
- 交通基础设施
- 电信基础设施
- 医疗基础设施
- 教育和培训
- 农业/粮食安全
- 金融
- 媒体
- 共址
- 研究机构
- 敏感个人数据
- 受控两用物品
- 生物技术
- 人工智能与机器学习
- 定位、导航与计时技术
- 微处理器技术
- 先进计算技术
- 数据分析技术
- 量子信息与传感技术
- 物流技术

- Additive Manufacturing (3D printing)
- Robotics
- Brain-computer interfaces
- Hypersonics
- Advanced Materials
- Advanced surveillance technologies
- Cyber Security
- Defense Technologies
- Energy Storage (batteries)
- Civil Nuclear
- Gambling
- Mineral Resources
- Tourism
- Space
- Critical Supplies

TOTAL SECTORS: Sum of all sectors covered in a sector-specific mechanism.

To aid in thematic industry coding, we include summations of the number of industries screened under different industrial groupings (variable names include related NACE codes).

- Defense
- Conventional Infrastructure
- “Next Generation” Critical Infrastructure
- Critical Technology and Dual Use
- Non-tradable Services
- Finance
- Media
- Sensitive Personal Data

- 增材制造 (3D打印)
- 机器人学
- 脑机接口
- 高超音速技术
- 先进材料
- 先进的监视技术
- 网络安全
- 国防技术公司
- 储能 (电池)
- 民用核能
- 赌博
- 矿产资源
- 旅游业
- 空间
- 关键物资

总部门：部门特定机制所涵盖的所有部门之和。

为便于进行主题行业编码，我们汇总了按不同行业分类筛选出的行业数量（变量名称包含相关的**NACE**代码）。

- 防守
- 传统基础设施
- “下一代”关键基础设施
- 关键技术与双重用途
- 不可交易服务
- 金融
- 媒体
- 敏感个人数据